

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE**

In re:	)	
	)	Chapter 11
Omnis Pleasants, LLC ¹	)	
	)	Case No. 26-11169 (KBO)
	)	
Debtor.	)	Ref. Docket No. 8
	)	

**INTERIM ORDER (I) AUTHORIZING THE DEBTOR TO
(A) CONTINUE TO OPERATE ITS CASH MANAGEMENT SYSTEM
AND HONOR PREPETITION OBLIGATIONS RELATED THERETO, (B) MAINTAIN
EXISTING BANK ACCOUNTS, AND (C) MAINTAIN EXISTING
BUSINESS FORMS; (II) SUSPENDING THE TIME TO COMPLY
WITH 11 U.S.C. § 345(b); AND (III) GRANTING RELATED RELIEF**

Upon the motion (the “**Motion**”)² filed by the above-captioned debtor and debtor in possession (the “**Debtor**”) seeking entry of an order (i) authorizing the Debtor to (a) continue to operate its Cash Management System and honor prepetition obligations related thereto, (b) maintain existing Bank Accounts, and (c) continue to use existing Business Forms, (ii) granting an interim thirty (30) day suspension of the time to comply with section 345(b) of the Bankruptcy Code, and (iii) granting related relief; and this Court having found that it has jurisdiction over this matter pursuant to 28 U.S.C. §§ 1334(b) and 157, and the Standing Order; and this Court having found that venue of the Chapter 11 Case and the Motion in this District is proper pursuant to 28 U.S.C. §§ 1408 and 1409; and this Court having found that this matter is a core proceeding pursuant to 28 U.S.C. § 157(b); and this Court having found that due and proper notice of the Motion has been given, and that no other or further notice is required or necessary under the circumstances; and this Court having determined that it may enter an interim order consistent with

¹ The last four digits of the Debtor’s tax identification number are 2673. The location of the Debtor’s principal place of business and the Debtor’s service address is One Power Station Boulevard, Belmont, West Virginia, 26134.

² Capitalized terms used but not otherwise defined herein shall have the meaning ascribed to them in the Motion.

Article III of the United States Constitution; and upon consideration of the First Day Declaration; and upon the record in the Chapter 11 Case and all of the proceedings had before this Court; and this Court having reviewed the Motion and having heard the statements in support of the relief requested therein at a hearing before this Court; and that the legal and factual bases set forth in the Motion establish just cause for the relief granted herein; and after due deliberation and sufficient cause appearing therefor,

IT IS HEREBY ORDERED THAT:

1. The Motion is **GRANTED** as set forth herein on an interim basis.
2. The final hearing (the “**Final Hearing**”) on the Motion shall be held on September 3, 2026, at 1:00 p.m., prevailing Eastern Time. Any objections or responses to entry of a final order on the Motion shall be filed with the Court, and served so as to be received by the following parties, by no later than 4:00 p.m., prevailing Eastern Time, on August 19, 2026: (i) proposed co-counsel to the Debtor, (a) Young Conaway Stargatt & Taylor, LLP, Rodney Square, 1000 North King Street, Wilmington, Delaware 19801, Attn: Andrew L. Magaziner (amagaziner@ycst.com); Robert F. Poppiti, Jr. (rpoppiti@ycst.com); and S. Alexander Faris (afaris@ycst.com), and (b) Herbert Smith Freehills Kramer (US) LLP, 1177 Avenue of the Americas, New York, New York 10036, Attn: Alexander Woolverton (alexander.woolverton@HSFKramer.com); Brian Shaughnessy (brian.shaughnessy@HSFKramer.com); Andrew Pollack (andrew.pollack@HSFKramer.com); and Jared C. Borriello (jared.borriello@HSFKramer.com); (ii) counsel to TRAG LLC and RG Energy LLC, DLA Piper LLP (US), 1251 6th Avenue, New York, NY 10020, Attn: Kristine Manoukian (kristine.manoukian@us.dlapiper.com); 1201 North Market Street, Suite 2100, Wilmington, Delaware 19801, Attn: R. Craig Martin (craig.martin@us.dlapiper.com) and 500 Eighth Street NW, Washington, DC 20004, Attn: Erik F. Stier (erik.stier@us.dlapiper.com); (iii) the Office of

the United States Trustee for the District of Delaware, 844 King Street, Suite 2207, Lock Box 35, Wilmington, Delaware 19801 Attn: Benjamin Hackman (benjamin.a.hackman@usdoj.gov); and (iv) if any statutory committee has been appointed in the Chapter 11 Case, counsel to such committee. If no objections to the entry of the Final Order are timely filed, this Court may enter the Final Order without further notice or a hearing.

3. The Debtor is authorized to, in its sole discretion, maintain and continue to operate the Cash Management System, substantially as described in the Motion and identified on Exhibit B attached thereto, and honor any prepetition obligations related thereto, in the ordinary course of business and consistent with the past practice.

4. The Debtor is authorized to (a) continue to use, with the same account numbers, the Bank Accounts in existence on the Petition Date; (b) treat the Bank Accounts for all purposes as accounts of the Debtor as debtor in possession; (c) use, in their present form, all Business Forms, without reference to its status as debtor in possession, except as otherwise provided in this Interim Order; and (d) pay outstanding Bank Fees and Charges.

5. The Banks are hereby authorized to continue to service and administer the Bank Accounts as accounts of the Debtor as a debtor in possession without interruption and in the usual and ordinary course, and to receive, process, honor, and pay any and all checks and drafts drawn on, or electronic transfer requests made on, the Bank Accounts after the Petition Date by the holders or makers thereof, as the case may be; *provided, however*, that any check drawn or issued by the Debtor before the Petition Date may be honored by a Bank if such payment is authorized by order of this Court and the Debtor instructs or requests that such Bank honor such payment.

6. Notwithstanding any other provision of this Interim Order, no Bank that honors a prepetition check or other item drawn on any account that is the subject of this Interim Order (a) at

the direction of the Debtor, (b) in a good faith belief that this Court has authorized such prepetition check or item to be honored, or (c) as the result of an innocent mistake made despite implementation of reasonable item-handling procedures, shall be deemed to be liable to the Debtor, its estate, or any other party on account of such prepetition check or other item being honored postpetition, or otherwise deemed to be in violation of this Interim Order.

7. The Banks are authorized, but not directed, to debit the Debtor's accounts in the ordinary course of business without need for further order of this Court for: (a) all checks and other payment orders drawn on the Bank Accounts which are cashed at such Bank's counters or exchanged for cashier's checks by the payees thereof prior to the Bank's receipt of notice of filing of the Chapter 11 Case; and (b) all checks, automated clearing house entries, and other items deposited or credited to one of the Bank Accounts with such Bank prior to filing of the Chapter 11 Case which have been dishonored, reversed, or returned unpaid for any reason, together with any fees and costs in connection therewith, to the same extent the Debtor was responsible for such items prior to filing of the Chapter 11 Case.

8. The Banks may rely on the representations of the Debtor with respect to whether any check or other payment order drawn or issued by the Debtor prior to the Petition Date should be honored pursuant to this or any other order of this Court, and the Banks shall not have any liability to any party for relying on such representations by the Debtor as provided for herein.

9. The Debtor (or its third-party designee) is authorized, but not directed, to open any new bank accounts or close any existing Bank Accounts as it may deem necessary and appropriate; *provided* that the Debtor shall give two (2) business days' advance notice of the opening or closing of any Bank Accounts to the U.S. Trustee, counsel to TRAG LLC and RG Energy LLC, and counsel to any statutory committee appointed in the Chapter 11 Case; *provided, further*, that the

Debtor (or its third-party designee) shall only open any such new Bank Accounts at banks that have executed a Uniform Depository Agreement (“**UDA**”) with the U.S. Trustee for Region 3, or at banks that are willing to immediately execute such an agreement. In addition, the opening or closing of a Bank Account shall be timely indicated on the Debtor’s monthly operating reports. Any new debtor-in-possession bank account must bear the designation “Debtor-in-Possession” and be designated as “Debtor-in-Possession” accounts with the case number.

10. For any bank at which the Debtor holds an account that is party to a UDA with the U.S. Trustee for Region 3, as soon as possible after entry of this Interim Order, the Debtor shall (a) contact the bank, (b) provide the bank with each of the Debtor’s employer identification numbers, and (c) identify the account(s) held at such bank as being held by a debtor in possession in a bankruptcy case, and request such bank to code the account(s) as a “debtor in possession” account, and provide the case number. The Debtor shall serve a copy of this Interim Order on the Banks.

11. For any bank at which the Debtor holds an account that is not party to a UDA with the U.S. Trustee for Region 3, the Debtor shall use its good-faith efforts to cause the bank to execute a UDA in a form prescribed by the U.S. Trustee within thirty (30) days of the date of this Interim Order. The U.S. Trustee’s rights to seek further relief from this Court on notice in the event that the aforementioned banks are unwilling to execute a UDA in a form prescribed by the U.S. Trustee are fully preserved.

12. To the extent any of the Bank Accounts are not in compliance with section 345(b) of the Bankruptcy Code or any of the U.S. Trustee’s requirements or guidelines (the “**U.S. Trustee Guidelines**”), the Debtor shall have thirty (30) calendar days from the date of this Interim Order to come into compliance with section 345(b) of the Bankruptcy Code and the U.S. Trustee

Guidelines, without prejudice to seeking an additional extension or a final waiver of such requirements; *provided* that nothing herein shall prevent the Debtor or the U.S. Trustee from seeking further relief from the Court to the extent an agreement cannot be reached within that time period (or such other period as is agreed to by the Debtor and the U.S. Trustee); and *provided further* that nothing herein shall waive or modify the provisions of any UDA between the U.S. Trustee and any Bank.

13. The Debtor is authorized to use its existing Business Forms and checks; *provided* that once the Debtor's existing checks have been used, the Debtor shall, when reordering such checks, require the designation "Debtor in Possession" and the corresponding bankruptcy case number on the check; *provided, further*, that, with respect to checks that the Debtor prints itself, the Debtor shall use commercially reasonable efforts to begin printing the "Debtor in Possession" legend and the bankruptcy case number on such checks within ten (10) days of the date of entry of this Interim Order.

14. The Banks are authorized, but not directed, to continue to charge, and the Debtor is authorized to pay, honor, or allow the deduction of from the appropriate account, the Bank Fees and Charges in the ordinary course of business and consistent with historical practices, whether such items are dated prior to, on, or subsequent to the Petition Date.

15. Those certain existing deposit agreements between the Debtor and the Banks shall continue to govern the postpetition cash management relationship between the Debtor and the Banks. All of the provisions of such agreements, including, without limitation, the termination and fee provisions, shall remain in full force and effect. The Debtor (or its third-party designee) and the Banks may, without further order of this Court, agree to and implement changes to the Cash Management System and procedures in the ordinary course of business and consistent with

prepetition practices, including, without limitation, the opening and closing of Bank Accounts, subject to the notice requirements set forth in this Interim Order with respect to any opening and closing of Bank Accounts

16. The Debtor is authorized, but not directed, to maintain the Purchase Cards and honor all prepetition and post-petition obligations arising thereunder and pay any ordinary course amounts owed in connection with the Purchase Cards for any fees, charges, refunds, reserves and other amounts due and owing from the Debtor to the provider of the Purchase Cards under any applicable agreements, whether such obligations are incurred prepetition or post-petition, and the Bank providing for such Purchase Cards is authorized to receive or obtain payment for such obligations, as provided under, and in the manner set forth in, the applicable agreement governing such Purchase Cards.

17. Nothing in this Interim Order (a) is intended or shall be deemed to constitute an assumption of any agreement pursuant to section 365 of the Bankruptcy Code or an admission as to the validity of any claim against the Debtor; (b) shall impair, prejudice, waive, or otherwise affect the rights of the Debtor or its estate with respect to the validity, priority, or amount of any claim against the Debtor and its estate; (c) shall be construed as a promise to pay a claim; or (d) shall create any rights in favor of, or enhance the status or nature of any claim held by, any person.

18. The Debtor shall maintain records of all transfers within the Cash Management System so that all transfers and transactions shall be adequately and promptly documented in, and ascertainable from, the Debtor's books and records, to the same extent as maintained prior to the commencement of the Chapter 11 Case so as to provide a clear demarcation between prepetition and postpetition transactions.

19. Notwithstanding anything to the contrary in this Interim Order or the Motion, the Debtor shall not make any intercompany loans to any non-debtor affiliates absent further order of this Court.

20. This Court finds and determines that the requirements of Bankruptcy Rule 6003 are satisfied and that the interim relief requested is necessary to avoid immediate and irreparable harm.

21. Notice of the Motion as provided therein shall be deemed good and sufficient notice thereof and the requirements of Bankruptcy Rule 6004(a) and the Local Rules are satisfied by such notice.

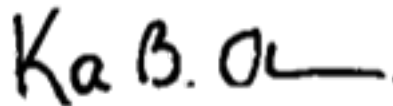
22. Notwithstanding anything herein (a) any payment made or to be made pursuant to the authority granted herein, or any authorization contained herein, shall be subject to and in compliance with any orders authorizing the Debtor's use of prepetition collateral (in each case, the "**Adequate Protection Order**"), including any budget in connection therewith (the "**Budget**") and (b) to the extent there is any inconsistency between the Adequate Protection Order and the terms of this Interim Order, the terms of the Adequate Protection Order, including the Budget, shall control. Nothing herein shall modify, alter, or waive any terms, provisions, requirements, or restrictions of the Adequate Protection Order.

23. Notwithstanding Bankruptcy Rule 6004(h), the terms and conditions of this Interim Order shall be immediately effective and enforceable upon its entry.

24. The Debtor is authorized and empowered to take all actions necessary to implement the relief granted in this Interim Order.

25. This Court retains jurisdiction with respect to all matters arising from or related to the implementation, interpretation, or enforcement of this Interim Order.

Dated: July 29th, 2026
Wilmington, Delaware


KAREN B. OWENS
CHIEF JUDGE